

Jata Shankar Dubey v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 12 April 2023 · WRIT - C No. - 10985 of 2023 · **Petition disposed; recovery withdrawn, fresh Code order left open.**

HEADNOTE

The writ against a recovery certificate for electricity dues was disposed of after the Electricity Department withdrew the certificate, with liberty to pass a fresh order strictly under the procedure in the U.P. Electricity Supply Code, 2005. No clause was construed and the dues were not decided.

FACTUAL SUMMARY

Jata Shankar Dubey petitioned the Allahabad High Court against a recovery certificate dated 21 October 2022 issued by respondent no. 4 for electricity dues. On 4 April 2023 the Court allowed the respondents a week to obtain instructions and directed that the writ be listed afresh on 12 April 2023. On the adjourned date, counsel for the Electricity Department informed the Court that the impugned recovery had been withdrawn and that a fresh order would follow the prescribed procedure.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

fresh order after withdrawal of recovery certificate

HOLDING

On the Electricity Department's statement that the recovery certificate dated 21.10.2022 had been withdrawn, the writ was disposed of with liberty to the Department to pass a fresh order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court identified no clause and did not decide the dues. ¶ 2

FLAG no clause number cited; the order refers only to the Code procedure generally

PRINCIPLE TAGS

procedural-listing-no-construction After a one-week adjournment to obtain instructions, the Court recorded withdrawal of the recovery certificate and disposed of the writ without construing any Supply Code clause, leaving any fresh order to the prescribed procedure. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE ELECTRICITY DUES COVERED BY THE WITHDRAWN RECOVERY CERTIFICATE

The Department may pass a fresh order under the Supply Code procedure; the Court did not examine the dues. ¶ 2